

Korikeni Kovvada Ramalakshmi vs Korikeni Manikanta on 24 February, 2025

HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

MAIN CASE No.Tr.C.M.P.61 of 2025
PROCEEDING SHEET

Sl. No.	DATE	ORDER	OFFICE NOTE
01.	24.02.2025	VGKR, J	

I.A.No.1 of 2025

Heard learned counsel for the petitioner.

Learned counsel for the petitioner contends that the petitioner is none other than the wife of the respondent/husband. Due to

matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at Gajularega Village, Vizianagaram District, along with her parents and at present she is eight (8) months pregnant.

Learned counsel for the petitioner would contend that the respondent/husband herein has filed F.C.O.P.No.2182 of 2024 on the file of the Family Court-cum-V Additional District and Sessions Judge, Visakhapatnam, under Section 12(1)(c) of Hindu Marriage Act, 1955, seeking to declare the marriage of the petitioner with the respondent as null and void and basing on some fabricated medical records of the petitioner/wife herein, the is pending for adjudication.

He would further contend that the petitioner/wife has been residing separately at her parents' house at Gajularega Village, Vizianagaram District and the distance between Gajularega Village and Visakhapatnam is more than 60 kms, since the petitioner being a woman and depending upon her parents, it is very difficult for her to travel to attend the case proceedings which is filed by the respondent/husband herein before the said Court at Visakhapatnam, on each and every adjournment without any male support and that the petitioner/wife is constrained to file the present transfer petition.

Perused the record.

Considering the submissions made by the learned counsel for the petitioner and for the reasons mentioned in the accompanying affidavit, there shall be an Interim Stay of all further proceedings including the appearance of the petitioner herein i.e., respondent in F.C.O.P.No.2182 of 2024 on the

file of the Family Court- cum-V Additional District and Sessions Judge, Visakhapatnam, till 09.04.2025.

Learned counsel for the petitioner is permitted to take out personal notice to the respondent through Registered Post with Acknowledgment Due and file proof of service before the Registry.

_____ VGKR, J Cont..

Tr.C.M.P.61 of 2025 Admit.

Issue notice to the respondent. Post the matter on 09.04.2025.

_____ VGKR, J CVD